

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANITA YUAN YUN HUANG,

Petitioner

VS.

WEN HUA YANG,

Respondent

) Case Number: FDI-16-786194

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SELL MARITAL HOME AND 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anita Yuan Yun Huang and Respondent Wen Hua Yang.
- 2) On 2/15/24, the Court issued a Final Statement of Decision, which includes disposition of the jointly owned condominium located at 110 Otter Cove Terrace in San Francisco CA. The Court ordered, in pertinent part: "The condominium is assigned to Petitioner, with an equalizing payment owed by Petitioner to Respondent in the amount of \$366,000. Petitioner shall have until August 31, 2024 to arrange the financing necessary to purchase Respondent's community property share of the condominium. If she is unable to do so by that date, the condominium shall be sold, and the net proceeds split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs. In the event the condominium is to be sold, Petitioner shall provide Respondent with the names of three proposed local real estate agents to act as the listing agent no later than September 21, 2024." See Final Statement of Decision and Order filed 2/15/24.

- 1 3) On 3/3/26, the Court denied Respondent's Request for Order filed 11/26/25 seeking: (a) an order
2 providing Respondent exclusive authority to sell the Condominium, including choosing a real
3 estate agent and accepting/rejecting offers; (b) an order for a court appointed elisor to sign the
4 listing agreements and/or other documents on Petitioner's behalf; and (c) \$1,500 in sanctions. The
5 Court denied the requests on the basis that judgment was not entered on the 2/15/24 Final
6 Statement of Decision, so therefore was not enforceable.
- 7 4) On 4/10/26, the Court entered Judgment incorporating the Final Statement of Decision filed
8 2/15/24.
- 9 5) On 7/6/26, Respondent filed a Request for Order seeking: (a) exclusive authority to sell the
10 condominium including choosing a real estate agent and accepting/rejecting offers; (b) a court
11 appointed elisor to sign the listing agreement and/or other documents on Petitioner's behalf; (c)
12 Petitioner ordered to vacate the property forthwith; (d) Petitioner ordered to pay legal interest rate
13 of 10% for each day that the equalization payment of \$366,000 is late; and (e) Petitioner ordered
14 to pay \$10,000 in Family Code section 271 sanctions.
- 15 6) On 7/6/26, counsel for Respondent filed a declaration in support of the request for \$10,000 in
16 Family Code section 271 sanctions.
- 17 7) On 8/18/26, former counsel for Petitioner filed a declaration in response to Respondent's
18 requests, asserting that Petitioner did not obstruct or delay the buyout process.
- 19 8) On 8/19/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
20 Order.
- 21 9) On 8/19/26, Petitioner filed an amended Responsive Declaration in opposition to Respondent's
22 Request for Order. Petitioner asserts that Respondent is precluded from seeking such relief as the
23 Court previously denied Respondent's request for the same relief on 3/3/26. Petitioner also asserts
24 that she sent Respondent a buyout agreement on 3/4/26 that he ignored.
- 25 10) The Court notes Petitioner filed two ex parte Requests for Order (one filed 3/16/26 and one filed
26 7/7/26) effectively seeking to modify the Court's Final Statement of Decision filed 2/15/24,
27 which the Court denied.

28 **B. Findings and Order**
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- 1) The Court finds that Petitioner has not arranged the financing necessary to purchase Respondent's community property share of the condominium by paying to Respondent an equalizing payment of \$366,000; therefore, the condominium must be sold.
- 2) Accordingly, Respondent's request for exclusive authority to sell the condominium located at 110 Otter Cove Terrace in San Francisco CA is GRANTED.
- 3) Petitioner shall vacate the condominium by 11/1/26, at which time Respondent shall have exclusive use, possession, and control of the condominium.
- 4) Respondent may unilaterally select a real estate agent and is given sole decision-making authority over whether to accept or reject offers.
- 5) Respondent's request for the Court to appoint an elisor to sign/execute the listing agreement is hereby GRANTED. Specifically, Court Executive Officer Brandon Riley is appointed as elisor. Should Respondent need to obtain the signature of Mr. Riley, Respondent shall contact the Administrative Office in Room 205 at 415-551-5737 to schedule an appointment with Mr. Riley to sign the listing agreement. Respondent shall bring to the appointment the necessary documents requiring signature and a file-endorsed copy of this order.
- 6) In so far as Respondent requires appointment of an elisor to sign additional documents to effectuate the sale of the condominium, he may file an ex parte Request for Order seeking such relief.
- 7) The net proceeds from the sale of the condominium shall be split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs.
- 8) The Court reserves jurisdiction over Respondent's request for \$10,000 in Family Code section 271 sanctions.
- 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).